believe that a Kashmiri Muslim sentenced to death for conspiring to attack the Indian Parliament can be acquitted, even if absolutely innocent?

And then our 'patriotic' celebration seemed to have been abruptly sullied by a statement made by Geelani at a press conference immediately after his release from jail. Instead of praising Indian democracy, or at least the judiciary, he expressed concern about the politicization of our courts and the criminalization of the police. Also, that a lasting solution to the Kashmir conflict could emerge, only if the aspirations of the people of Kashmir were taken into account. He added that he wanted to help other prisoners, especially the Kashmiris in Tihar jail, who had been denied a fair trial.[7]

It is true that a few thought Geelani's statement reflected a rare courage. Even at the press conference his colleagues, including senior professors, endorsed his statement by clapping and cheering. But there were many others who felt he was being rash and foolhardy by making such statements, especially since the police had already announced that they would appeal in the supreme court against his acquittal. Geelani's supporters advised caution and self-restraint. Other friends advised him to return to normal life, begin teaching and resume research.

Many who advised caution were worried not only about Geelani's personal safety but that the Kashmiris may draw wrong conclusions from his statement. Kuldip Nayar, one-time Emergency victim and a prominent voice of democratic India, reflects this opinion. Writing in the *Indian Express* on 4 November 2003, Nayar castigated Geelani: 'For Geelani to mix the Kashmir question with the attack is to politicize a heinous crime . . . I hope Geelani's statement does not become grist for the propaganda mills. A favourable ground for talks between Deputy Prime Minister L.K. Advani and the Hurriyat is being prepared.' He added that Geelani's 'only claim to fame was the police case against him which it could not prove in the court.'[8]

Such 'democratic minded' Indians hope that the people in Kashmir will see Geelani's acquittal as a testimony of the democratic credentials of our country. They think that Kashmiris will forget their history and bitter experience of the past decades only because a high court has acquitted an innocent Kashmiri against whom there was not an iota of evidence in the first place and who had been condemned to death by a POTA court.

It is undeniable that the two high court judges who acquitted Geelani, Justices Usha Mehra and Pradeep Nandrajog, showed rare courage and integrity. The acquittal of Navjot was simpler because there is no constituency